

An Act

ENROLLED SENATE
BILL NO. 1946

By: Murdock of the Senate

and

Moore of the House

An Act relating to alcoholic beverages; amending 37A O.S. 2021, Section 2-103, as amended by Section 5, Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2025, Section 2-103), which relates to distiller licenses; increasing certain number of allowed noncontiguous locations allowed for certain licensee; allowing certain licensee to sell certain sample spirits at certain public events; allowing certain spirits to be sold in certain controlled area; establishing certain area to be considered certain distillery premises; updating statutory language; and providing an effective date.

SUBJECT: Alcoholic beverage licenses

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-103, as amended by Section 5, Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2025, Section 2-103), is amended to read as follows:

Section 2-103. A. A distiller license shall authorize the holder thereof:

1. To manufacture, bottle, package and store spirits on licensed premises;

2. To sell spirits in this state to licensed wholesalers and manufacturers only;

3. To sell spirits out of this state to qualified persons; to purchase from licensed distillers and rectifiers in this state, and import spirits from without this state for manufacturing purposes in accordance with federal laws and regulations;

4. To serve free samples of spirits produced only by the licensee to visitors twenty-one (21) years of age and older. For purposes of this section, no visitor may sample more than a total of three (3) fluid ounces of spirits per day. The distiller shall restrict the distribution and consumption of spirits samples to an area within the licensed premises designated by the distiller. A current floor plan that includes the designated sampling area shall be on file with the ~~ABLE~~ Alcoholic Beverage Laws Enforcement (ABLE) Commission. No visitor under twenty-one (21) years of age shall be permitted to enter the designated sampling area when samples are being distributed and consumed. Samples of spirits served by a distiller under this section shall not be considered a sale of spirits within the meaning of Article XXVIII-A of the Oklahoma Constitution or Section 1-103 of this title; provided, such samples of spirits shall be considered removed or withdrawn from the distillery for use or consumption within the meaning of Section 5-110 of this title for excise tax determination and reporting requirements;

5. To sell spirits produced by the licensee for either on-premises or off-premises consumption to consumers on the licensed distillery premises or in an area controlled by the licensee located contiguous to the licensed distillery premises and at ~~one (1) location~~ two locations controlled by the licensee located in the same ~~county~~ state as the licensed distillery premises but not contiguous to the licensed distillery premises. Spirits offered for sale by the Oklahoma licensed distiller will have been sold to and shipped to an Oklahoma licensed wine and spirits wholesaler and then made available for purchase by the Oklahoma licensed distiller for sale; and

6. To sell spirits and sample spirits at public events such as trade shows or festivals. Products offered for sale by the Oklahoma licensed distiller will have been sold to and shipped to an Oklahoma

licensed wine and spirits wholesaler and then made available for purchase by the Oklahoma licensed distiller. Spirits offered for on-premises consumption shall be in an area controlled by the distillery and such area shall be considered the distillery premises.

B. Spirits sold pursuant to paragraphs 5 and 6 of subsection A of this section shall not exceed fifteen thousand (15,000) gallons per calendar year in combination.

C. Spirits sold pursuant to paragraphs 5 and 6 of subsection A of this section shall be a final sale. Licensed distillers may offer for sale ~~non-alcoholic~~ nonalcoholic substances which may be added to spirits by the consumer after final sale. Substances used for on-premises consumption shall be ~~non-alcoholic~~ nonalcoholic in nature and shall not be considered part of the manufacturing process.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____